(a) The State's enforcement program will not be detracted from;

(b) The purpose of the on-site consultation visit is pre-determined as "consultative" with each employer requesting the assistance;

(c) The consultative staff is separate and autonomous from the enforcement section;

(d) A particular problem must be identified by those requesting consultation before the request can be honored; the smaller the employer the less specificity is required;

(e) Each consultant has the authority to avert an imminent danger situation discovered during the visit. In addition, apparent serious violations found during an on-site consultative visit will be pointed out to the employer, an abatement period set, and a follow-up visit for the purpose of enforcement scheduled;

(f) Employers will be informed prior to the visits that consultative visits do not provide immunity from a regularly scheduled inspection or an inspection resulting from complaints;

(g) Employers will be informed prior to the on-site consultation that suggestions and advice offered by the consultant are not binding on an enforcement officer and do not preclude the finding of alleged violations by an enforcement officer and the proposing of penalties;

(h) The on-site consultation is restricted to what has to be done in the workplace by the employer to come into voluntary compliance and not how it is to be done; and

(i) Consultative services will be operated on a priority basis.

In addition to its consultation program, the supplement submitted by Minnesota pertains to some changes in its plan initiated by the State. First, there has been a deletion of the requirement in the plan (Minnesota Plan, pp. 94–95) that State agencies have a full-time director or safety committee. Among other things, the designee cannot mandate such a requirement to other State agencies. However, public employees will be covered in the same manner as private employees. In place of the requirement for other State agencies noted above, the Department of Labor and Industry now has a staff liaison person who is responsible for assisting State agencies and political subdivisions which do not have their own occupational safety and health staff or expertise.

In addition, the four regional offices discussed in the original plan are now designated area offices. Instead of one floating supervisor, each area office will include a supervisor. A map showing the new area breakdown is included.

Also, the position descriptions in the plan have been revised in accordance with procedures established by the Minnesota Department of Personnel. The organization chart has been updated.

3. *Location of the plan and its supplement for inspection and copying.* A copy of the supplements along with the approved plan may be inspected and copied during normal business hours at the following locations: Office of the Associate Assistant Secretary for Regional Programs, Occupational Safety and Health Administration, Room 850, 1726 M Street NW., Washington, D.C. 20210; Office of the Assistant Regional Director, Occupational Safety and Health Administration, Room 3259, 230 South Dearborn Street, Chicago, Illinois 60604; State Capitol Building, Legislative Reference Library, St. Paul, Minnesota 55155.

4. *Public participation.* Under § 1953.2 of this chapter, the Assistant Secretary of Labor for Occupational Safety Health (hereinafter referred to as the Assistant Secretary) may prescribe alternative procedures to expedite the review process or for any other good cause which may be consistent with applicable law. The Assistant Secretary finds that the Minnesota consultation program is in accordance with the requirements and conditions in the plan as it was approved and that the State-initiated changes are minor in nature. Therefore, further public notice and comment would be unnecessary.

5. *Decision.* After careful consideration, the Minnesota plan supplements described above are approved under Part 1953 of this chapter. This decision incorporates the requirements of the Act and implementing regulations applicable to State plans generally. Subpart N of 29 CFR Part 1952 is amended to reflect the completion of a developmental step upon the implementation of the State's consultation program. Accordingly, for the reasons stated in section 4 above, Subpart N of 1952 is hereby amended, effective April 30, 1975, as set forth below.

Section 1952.204 is amended by revising the heading, designating the present text as paragraph (a), and adding a new paragraph (b) as follows:

§ 1952.204 Completion of developmental steps.

* * * * *

(b) In accordance with § 1952.203(g), the Minnesota voluntary compliance program became effective on January 1, 1975, and was approved by the Assistant Secretary on April 24, 1975.

(Secs. 8(g), 18, Pub. L. 91–596, 84 Stat. 1600, 1608 (29 U.S.C. 657(g)(2) 667))

Signed at Washington D.C. this 24th day of April 1975.

JOHN STENDER,
Assistant Secretary of Labor.

[FR Doc.75–11363 Filed 4–30–75;8:45 am]

Title 41—Public Contracts and Property Management

CHAPTER I—FEDERAL PROCUREMENT REGULATIONS

[FPR Amdt. 142]

PART 1–7—CONTRACT CLAUSES

PART 1–15—CONTRACT COST PRINCIPLES AND PROCEDURES

Correction

In FR Doc. 75–8652 appearing at page 14913 of the issue for Thursday, April 3, 1975, make the following changes:

1. In § 1–7.202–4, page 14913, the thirteenth line from the bottom of paragraph (b) of the clause, now reading "cluded in direct costs for payment purposes", should read "cluded in indirect costs for payment purposes".

2. The following entry should be added to the table of contents for Subpart 1–15.7, page 14913:

Sec.
1–15.709–6 Resolution of problems.

3. In the thirteenth line of § 1–15.205–6(f)(2)(ii)(B)(2), page 14915, the reference to "§ 1–15.20–6(f)(2)(ii)(*f*)" should read "§ 1–15.205–6(f)(2)(ii)(*f*)".

Title 43—Public Lands: Interior

CHAPTER II—BUREAU OF LAND MANAGEMENT, DEPARTMENT OF THE INTERIOR

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 5498; (Montana 30912)]

MONTANA

Transfer of Jurisdiction of the Charles M. Russell National Wildlife Range

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), it is ordered as follows:

Executive Order No. 2951 of February 25, 1963, which established the Charles M. Russell National Wildlife Range, which is presently jointly administered by the United States Fish and Wildlife Service and the Bureau of Land Management, is hereby transferred to the sole jurisdiction of the Bureau of Land Management, so far as it relates to the following described lands:

MONTANA PRINCIPAL MERIDIAN

T. 21 N., R. 23 E.,
Secs. 1 through 18.
T. 22 N., R. 23 E.
T. 21 N., R. 24 E.,
Secs. 1 through 18.
T. 22 N., R. 24 E.
T. 21 N., R. 25 E.,
Secs. 1 through 18.
T. 22 N., R. 25 E.
Tps. 21 and 22 N., R. 26 E.
T. 21 N., R. 27 E.,
Secs. 1 through 25.
T. 22 N., R. 27 E.
T. 21 N., R. 28 E.,
Sec. 2, W½W½;
Secs. 3 through 10;
Sec. 11, lots 4 through 8, W½NW¼;
Sec. 12, lots 4, 6 through 10, SE¼SE¼;
Secs. 13 through 23, 26 through 30.
T. 22 N., R. 28 E.,
Secs. 5 through 8, 13 through 34;
Sec. 35, W½E½, W½;
Sec. 36, W½W½.
T. 18 N., R. 29 E.,
Secs. 1, 2, 11, 12, and 13.
T. 19 N., R. 29 E.,
Secs. 1, 2, 3, 10 through 15, 22 through 27, and 34, 35, 36.
T. 20 N., R. 29 E.,
Secs. 1, 2, 3, 10 through 15, 22 through 27, and 34, 35, 36.
T. 21 N., R. 29 E.,
Sec. 7, lot 5;
Sec. 14, lot 4;
Sec. 15, lots 3 through 7, S½NW¼, SW¼, W½SE¼, SE¼SE¼;
Sec. 16, lots 5 through 8, S½SW¼, E½SE¼, SW¼SE¼;
Sec. 17, lots 3, 6 through 8, W½SW¼, SE¼SW¼, S½SE¼;

Sec. 18, lots 2 through 8, SW¼NE¼, SE¼NW¼, E½SW¼, SE¼;
Secs. 21 and 22;
Sec. 23, lots 3, 4, 6, 7, SW¼NW¼, SW¼, S½SE¼;
Sec. 24, lots 5 through 8, S½S½;
Sec. 25, lots 1, 2, 4, N½NE¼, SW¼NE¼, W½, NW¼SE¼;
Secs. 26, 27, 28, 33, 34, 35;
Sec. 36, lots 2, 3, W½NE¼, W½, SE¼.
T. 18 N., R. 30 E.,
Secs. 4, 5, 6.
31-10—39-1 166
T. 19 N., R. 30 E.,
Secs. 1 thru 11, 15 through 22, 28 through 33.
T. 20 N., R. 30 E.,
Sec. 1, lots 1, 2, 3, 6, 7, 8, E½SW¼, SE¼;
Sec. 2, lot 9;
Sec. 5, lots 2, 3, 4, 7, 8, SW¼NW¼, W½SW¼, SE¼SW¼;
Secs. 6 and 7;
Sec. 8, lots 2, 3, S½NE¼, W½, SE¼;
Sec. 9, lots 3, 4, 7, 8, W½SW¼;
Sec. 11, lots 1, 2, 3, 4, 7, E½E½, SW¼NE¼, NW¼SE¼;
Secs. 12 and 13;
Sec. 14, lots 1, 4, 5, 9;
Sec. 16, lots 2, 3, 6, NW¼NW¼;
Secs. 17 through 20;
Sec. 21, lots 4, 5;
Sec. 23, lots 1, 2, 4, 5, 6, 7, S½NE¼, E½SW¼, SE¼;
Secs. 24 and 25;
Sec. 26, lots 1, 2, 4, 5, 8, NE¼, E½SE¼;
Sec. 28, lot 2;
Sec. 29, lots 1, 2, 4, 5, W½E½, W½;
Secs. 30, 31, 32;
Sec. 33, lots 7 through 10, SE¼SW¼, S½SE¼;
Sec. 34, lots 5 through 8, S½;
Sec. 35, lots 1, 3, E½, SE¼NW¼, SW¼;
Sec. 36.
T. 21 N., R. 30 E.,
Sec. 19, lot 4;
Sec. 30, lot 2;
Sec. 31, lots 4, 5, 6;
Sec. 35, lots 1, 4, 5, 6, 9, SE¼SW¼, E½SE¼, SW¼SE¼;
Sec. 36, lots 2 through 9, S½SW¼, SE¼.
T. 22 N., R. 30 E.,
Sec. 1, lots 1 through 4, SW¼NE¼, S½NW¼, SW¼, W½SE¼.
T. 23 N., R. 30 E.,
Secs. 25 and 36.
T. 20 N., R. 31 E.,
Secs. 1 through 8, 17 through 20, 29 through 32.
T. 21 N., R. 31 E.
T. 22 N., R. 31 E.,
Secs. 1 through 5;
Sec. 6, lots 1, 2, SE¼NE¼;
Secs. 8 through 17, 20 through 29, 31 through 36.
T. 23 N., R. 31 E.,
Secs. 25 through 36.
T. 21 N., R. 32 E.,
Secs. 1 through 12, 16 through 19, 30 and 31.
T. 22 N., R. 32 E.
T. 21 N., R. 33 E.,
Secs. 1 through 6, 9 through 16.
T. 22 N., R. 33 E.
T. 23 N., R. 33 E.,
Secs. 35 and 36.
T. 21 N., R. 34 E.,
Secs. 6, 7, 18.
T. 22 N., R. 34 E.
T. 23 N., R. 34 E.,
Secs. 22 through 36.
T. 22 N., R. 35 E.
T. 23 N., R. 35 E.,
Secs. 19 through 36.
T. 21 N., R. 36 E.,
Secs. 1, 2, 3, 10, 11, 12.
T. 22 N., R. 36 E.
T. 23 N., R. 36 E.,
Secs. 1, 12, 13, 19 through 36.
T. 21 N., R. 37 E.,
Secs. 1 through 17.
Tps. 22 and 23 N., R. 37 E.
T. 21 N., R. 38 E.,
Secs. 2 through 11, 14 through 18.
T. 22 N., R. 38 E.,
Secs. 1 through 24, 26 through 35.
T. 23 N., R. 38 E.
T. 24 N., R. 38 E.,
Secs. 25 through 28, 33 through 36.
T. 22 N., R. 39 E.,
Secs. 1 through 20.
Tps. 23 and 24 N., R. 39 E.
T. 25 N., R. 39 E.,
Secs. 1 through 4, 9 through 16, 21 through 28, 33 through 36.
T. 26 N., R. 39 E.,
Secs. 21 through 28, 33 through 36.
T. 22 N., R. 40 E.,
Secs. 1 through 9, 16, 17, 18.
Tps. 23, 24, 25 N., R. 40 E.
T. 26 N., R. 40 E.,
Secs. 19 through 36.
T. 23 N., R. 41 E.,
Sec. 6.
T. 24 N., R. 41 E.,
Secs. 1 through 16, 18, 19, 23, 24, 25, 30, 31, 36.
T. 25 N., R. 41 E.
T. 26 N., R. 41 E.,
Secs. 1, 2, 3, 10 through 36.
T. 20 N., R. 42 E.,
Secs. 1, 11 through 14, 23 through 26.
T. 21 N., R. 42 E.,
Secs. 1, 2, 11 through 14, 23 through 26, 35 and 36.
T. 22 N., R. 42 E.,
Secs. 1 through 4, 9 through 16, 21 through 28, 34, 35, 36.
T. 23 N., R. 42 E.,
Secs. 1 through 29, 33 through 36.
T. 24 N., R. 42 E.,
Secs. 5 through 11, 14 through 36.
T. 25 N., R. 42 E.,
Secs. 4 through 10, 15 through 19, 30 and 31.
T. 26 N., R. 42 E.,
Secs. 5 through 8, 17 through 20, 29 through 33.
T. 20 N., R. 43 E.,
Secs. 5 through 8, 17 and 18.
T. 21 N., R. 43 E.,
Secs. 2 through 11, 14 through 23, 26 through 32.
T. 22 N., R. 43 E.,
Secs. 4 through 9, 16 through 21, 27 through 35.
T. 23 N., R. 43 E.,
Secs. 5 through 8, 16 through 21, 28 through 33.
T. 24 N., R. 43 E.,
Secs. 19, 20, 29 through 32.

The total area described aggregates approximately 980,000 acres.

Dated: April 25, 1975.

ROGERS C. B. MORTON,
Secretary of the Interior.

[FR Doc.75-11443 Filed 4-30-75;8:45 am]

[Public Land Order 5497; (Nevada 0517^2)]

NEVADA

Transfer of Jurisdiction of the Charles Sheldon Antelope Range

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), it is ordered as follows:

The Charles Sheldon Antelope Range, established by Executive Order No. 7522 of December 21, 1936, which is presently administered jointly by the United States Fish and Wildlife Service and the Bureau of Land Management, is hereby transferred to the sole jurisdiction of the Bureau of Land Management, insofar as it affects the following described lands:

MOUNT DIABLO MERIDIAN

T. 45 N., R. 22 E.,
Secs. 1, 2, 3, 10 through 15, and 19 through 36.
T. 46 N., R. 22 E.,
Secs. 1 through 18, 22 through 27, and 34, 35, 36.
T. 47 N., R. 22 E.
Tps. 43, 44, 45, 46, 37 N., R. 23 E.
Tps. 46 and 47 N., R. 23½ E.
Tps. 43, 44, 45, 45½, 46, 47 N., R. 24 E.
Tps. 43 and 44 N., R. 24½ E.
Tps. 43 through 47 N., Rs. 25 and 26 E.
Tps. 46 and 47 N., R. 27 E.
T. 46 N., R. 28 E.,
Secs. 5 through 8, 17 through 20, and 29 through 32.
T. 47 N., R. 28 E.,
Secs. 19, 20, and 29 through 32.

The areas described aggregate approximately 539,000 acres.

Dated: April 25, 1975.

ROGERS C. B. MORTON,
Secretary of the Interior.

[FR Doc.75-11444 Filed 4-30-75;8:45 am]

Title 45—Public Welfare

SUBTITLE A—DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE, GENERAL ADMINISTRATION

PART 5—AVAILABILITY OF INFORMATION TO THE PUBLIC

Research Designs and Protocols

The present Freedom of Information regulation of this Department (45 CFR Part 5) reflected our belief that research designs and protocols submitted in connection with applications for research project or research training grants constitute confidential and privileged trade secrets and commercial information and, as such, were protected from mandatory disclosure under the fourth exemption to the Freedom of Information Act. 5 U.S.C. 552(b)(4). The United States Court of Appeals for the District of Columbia has recently held, in *Washington Research Project, Inc.* v. *Department of Health, Education, and Welfare*, C.A. No. 74-1027 (decided September 12, 1974), that research designs and protocols submitted with initial grant applications which have been funded by this Department, together with those submitted with applications for continuation, renewal or supplemental grants (including interim reports), whether funded or pending, are not exempt from disclosure under the Freedom of Information Act. The Court did not have before it, or rule upon, whether research designs and protocols submitted with research grant applications which have not been funded are exempt from disclosure.

The Court's decision does not make the entire funded grant file available. To the contrary, the Court specifically upheld the withholding of site visit reports and summaries of the initial review groups' recommendation ("pink sheets") under